

FL-21-001943 WRIGHT VS WRIGHT

County: stanislaus

Division: Family Law

Department: 11

Hearing date: 2026-08-11

Motion: Respondent's Motion re Joinder—DENIED, without prejudice. With respect to matters other than child custody and pension plans, the joinder of non-party individuals or entities to a dissolution action is permissive and therefore subject to the Court's discretion. Here, as Respondent alleges the non-parties have or claim an interest in property alleged to be community, Respondent is required to demonstrate by competent evidence and affidavits that such interests exist and must address all the factors the Court is required to consider in exercising its discretion. (See, Cal. Rules of Ct., rule 5.24(c),(e); Schnabel v. Superior Court (1994) 30 Cal.App.4th 758, 765.) Respondent's showing alleges only a possibility of the existence of such interests by or on the part of third-parties and the moving papers fail to address all the relevant factors aside from characterization. (Id.) Aside from this, the motion is further defective in that Respondent failed to include, as required, a copy of the proposed "pleading" or other claim or complaint setting forth the financial and property interests at stake and the cause of action (or other legal basis) for Respondent's assertion of an interest. (Cal. Rules of Ct., rule 5.24(d)(1) ["...it must be accompanied by an appropriate pleading setting forth the claim as if it were asserted in a separate action or proceeding"], emphasis added.) If the Court were to grant issuance of a Summons re Joinder on this showing, there would be nothing substantive for the non-parties to respond to. The following are the tentative ruling cases calendared before Judge J. Richard Distaso in Department #13: THERE ARE NO TENTATIVES. The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14: THERE ARE NO TENTATIVES. The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25:

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Respondent's Motion re Joinder—DENIED, without prejudice.

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